

OFFICE OF THE SECRETARY

PO Box 942883

Sacramento, CA 94283-0001



March 3, 2021

The Honorable Daniel J. Didier
Judge of the Superior Court
County of Orange
8141 13th Street
Westminster, CA 92683

Re: Guadalupe Vincent Hernandez
CDCR No: J86435
Case No: 94WF1745
Date of Sentence: September 17, 1995

Dear Honorable Daniel J. Didier:

The purpose of this letter is to provide the court with the authority to resentence inmate Guadalupe V. Hernandez, J86435 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Hernandez has remained disciplinary free since being received to CDCR on December 13, 1995. Inmate Hernandez is currently assigned as Clerk and is enrolled in voluntary college. His supervisor notes that he is an exceptional worker. Inmate Hernandez has participated in some substance abuse treatment and anger management groups. Hernandez has received certificates and laudatory chronos from these group sponsors, acknowledging his commitment and dedication to these self-awareness and improvement groups.

The Honorable Daniel J. Didier

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Having reviewed the enclosed documentation it appears that inmate Hernandez's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

A handwritten signature in cursive script, appearing to read "K. Allison".

KATHLEEN ALLISON

Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable Kirk H. Nakamura, Presiding Judge
Orange County District Attorney's Office
Orange County Public Defender's Office